

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

November 22, 2010

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Dr. Rinne, Mr. Pierson, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Collins moved to approve Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on November 8, 2010. Motion (per Consent Agenda) carried.

[CA] Minutes from Vouchers Meeting of the Governing Body on November 15, 2010. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Upon inquiry, Barb Dorr, City Treasurer, reviewed budget line item expenditures and estimated remaining fund balances relating to mechanical work outsourcing costs for the Fleet Maintenance Division and staffing overtime costs for the Sanitation Division. Jim Elias, Public Works Director, provided information available pertaining to a voucher payable to Fort Towing & Service (\$295.00) involving towing service for a City transit bus. Motion carried. Voting "yes" – all members of the governing body. Mayor Kaysen noted that Mr. Elias had recently submitted an analysis for his review with regard to Fleet Maintenance and Sanitation budgets, and explained some mechanical outsourcing of fleet vehicles is due to major repair work that can not be done by in-house mechanics.

"An Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in the SW1/4 of Section 25, T.14N., R.66W., 6th P.M., Laramie County, Wyoming (generally located north of Pershing Boulevard, between Whitney Road and Christensen Road)." Reporting for Public Services Committee, Ms. Ash moved to approve on third and final reading, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body. (#3909)

"An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the Zoning Classification from LR-2 Low Density Residential-Developing District to MUB Mixed Use with Business Emphasis District for a portion of the NW¼NE¼NW¼ of Section 26, T.14N., R.66W.,

6th P.M., Cheyenne, Wyoming (located south of and adjacent to Dell Range Boulevard, east of Van Buren Avenue).” Ms. Ash moved to approve on second reading, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body.

“An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the Zoning Classification from LR-2 Low Density Residential-Developing and CB Community Business Districts to LR-2, MR-2 Low and Medium Density Residential-Developing and P Public Districts for the The Pointe, Fifth Filing, A Replat of Lots 13-25, Block 13; Lots 27-69, Block 14; Lots 1-35, Block 16; Lots 1-22, Block 17; Lots 1-27, Block 18; Lots 1-32, Block 19; Lots 1-19, Block 20 and Lot 1, Block 21, The Pointe; and Lots 37-38 and 71, Block 14; The Pointe, Second Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of E. Four Mile and Powderhouse Roads).” Ms. Ash moved to approve on second reading, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body with the exception of Ms. Ash and Dr. Rinne voting "no".

[CA] "A Resolution adopting the Cheyenne Metropolitan Area Pedestrian Plan and Cheyenne Metropolitan Area Safe Routes to School Plan." Motion (per Consent Agenda) carried. (#5250)

[CA] "A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for The Pointe, Fifth Filing, a replat of Lots 13-25, Block 13; Lots 27-69, Block 14; Lots 1-35, Block 16; Lots 1-22, Block 17; Lots 1-27, Block 18; Lots 1-32, Block 19; Lots 1-19, Block 20 and Lot 1, Block 21, The Pointe; and Lots 37-38 and 71, Block 14, The Pointe, Second Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of E. Four Mile and Powderhouse Roads)” -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] “A Resolution supporting the City of Cheyenne’s application for a Land and Water Conservation Fund Grant for the Martin Luther King Park Tennis Court Project (2007-2010 1% Sales Tax and City In-Kind Contribution)” -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] Contract between the City of Cheyenne and the Cheyenne/Laramie County Corporation for Economic Development (Cheyenne LEADS) for industrial and economic development services. Motion (per Consent Agenda) carried (amount not to exceed \$50,000.00). (#5619)

[CA] Contract between the City of Cheyenne and the United States Department of Homeland Security for a Grant in the amount of \$100,000 for the City of Cheyenne Fire and Rescue Hazardous Materials Response Team and Regional Emergency Response Team # 7 -- referred to Finance Committee.

[CA] Use Agreement between the City of Cheyenne and Cheyenne Regional Medical Center to permit limited use of the public right-of-way for the construction of a utility corridor and setting a fee -- referred to Finance Committee.

[CA] Human Services Agreement between the City of Cheyenne and Connection Corner (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Professional Services Contract between the City of Cheyenne on behalf of the Cheyenne Metropolitan Planning Organization and AVI Professional Corporation for Fox Farm Corridor Plan (Federal Highway Administration Planning Funds) -- referred to Finance Committee.

[CA] Contract Modification #6 to Contract #5280 between the City of Cheyenne and Reiman Corporation for reduction of retainage for the Norris Viaduct Project (2003-2006 1% Sales Tax; 1% Specific Purpose Sales and Use Tax; SLIB; TEAL; BOPU Funds) -- referred to Finance Committee.

[CA] Consideration of Bid #M-3-11 for a contract between the City of Cheyenne and Miracle Recreation Equipment Co., c/o Churchich Recreation, LLC, Niwot, CO, for furnishing and installing playground equipment at David R. Romero South Cheyenne Community Park (Cheyenne Community Recreation Mill 2010). Motion (per Consent Agenda) carried (amount not to exceed \$57,969.00). (#5620)

[CA] Consideration of Bid #R-12-11 for furnishing one new cab and chassis truck with automated refuse side loader body installed from Peterbilt of Wyoming, Cheyenne, WY, for the Sanitation Division (Solid Waste Management Fund). Motion (per Consent Agenda) carried (amount not to exceed \$215,557.00).

[CA] Consideration of Bid #R-13-11 for furnishing one new Fire Apparatus and Loose Equipment for the City of Cheyenne Fire & Rescue Department -- referred to Finance Committee.

Consideration of a proposal for an agreement, recommended by the Art In Public Places Committee, to acquire artwork to be known as "Hare Raising" from Tim Cherry, Branson, MO, for placement at the entrance area of the David R. Romero South Cheyenne Community Park. John Goodier, Chairman, Art In Public Places Committee (AIPPC), reviewed remaining budget funding (approximately \$20,000.00) for artwork acquisition, the Committee's purpose and directive to seek artwork for the community pursuant to City Code, AIPPC's efforts in reviewing and recommending an appropriate art piece for the new park, and the artist's offer to provide the sculpture at a reduced cost (\$20,000.00). Upon inquiry, Mr. Goodier discussed the AIPPC's understanding of funding availability due to budgetary concerns; the number of sculptures that have been placed in the community under the program; status of the Committee (active vs. inactive) if funding is not available; sculpture proposals and selection process utilized by the Committee; artists' willingness to offer their sculptures at a reduced cost in order to have the artwork publicly displayed; private donations that have been provided for some pieces, and Committee members' and City staff assistance, at times, in physical installation of artwork. Upon further inquiry, he reviewed personal costs that Mr. Cherry incurred during the proposal process regarding the sculpture for the park. Reporting for Finance Committee, Mr. Brown stated there was no recommendation on the item from the Committee. Mr. Collins moved to approve, seconded by Ms. Case. Ms. Broyles distributed a brochure (on file with office of City Clerk) on sculptures that have been placed throughout the City. Discussion included the following topics: Support for volunteer members serving on the City's various boards and committees; timing of the expenditure due to budgetary concerns, economic situation, reductions in staffing levels incurred earlier in the year, and increasing costs to employees without compensation adjustment; past and current status of budget funding for artwork; current fiscal year budget review affiliated

with the funding line item; budget priorities and fiscal responsibility; community beautification; support for sculpture at the new park; funding of basic infrastructure needs (programs, services, staffing and operating costs, etc.) vs. purchasing artwork at this time; employees' perception of purchasing artwork relative to budget reductions and concerns, and possible utilization of the funding for the artwork for other City budgets if the proposal is not approved. Motion to approve failed (due to a tie vote). Voting "yes" – Ms. Broyles, Ms. Case, Mr. Collins, Mr. Valdez and Mayor Kaysen. Voting "no" – Ms. Ash, Mr. Brown, Mr. Pierson, Dr. Rinne and Mr. Spiker.

[CA] Consideration of purchase of a used Jacobson mower from C & M Golf & Grounds, Denver, CO, for the Grounds and Facilities Division (2007-2010 1% Sales and Use Tax. Motion (per Consent Agenda) carried (amount not to exceed \$42,350.00).

Announcement was made of a Public Hearing to be held December 13, 2010 at 6:00 p.m. in City Council Chambers for a transfer of ownership and transfer of location for a retail liquor license application filed with the City Clerk's Office for W.E. Dinneen, Inc. d/b/a [to be determined], 400 W. Lincolnway, Cheyenne, WY. (License currently held by Cheyenne 28, LLC f/d/b/a C.B. & Potts, 1650 Dell Range Boulevard, Cheyenne, Wyoming.)

Under other business, discussion was held on a proposed "write-off" listing that had been submitted to members of the governing body by the City Treasurer for uncollectible debts due the City totaling \$85,579.00 for years 2003-2008. Topics discussed included: Collection procedures; recognition that many on the debt listing are active businesses in the community; suggestion of initiating small claims court actions to seek payments due through assistance of City legal staff and staff time that may be involved; whether City services could be restricted to those owing money and setting a limit of indebtedness for same; certain billings issued through Board of Public Utilities, and the dollar amount involving non-sufficient funds checks that constitutes a felony offense. During discussion, Barb Dorr, City Treasurer, explained past and current debt collection procedures and communication and collection efforts by staff; that some amounts due are unpaid accrued interest; collection agency services, and different types of debt areas, and noted the listing was provided for review prior to a resolution being submitted to write-off the debts.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 7:04 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
November 30, 2010